

CONFIDENTIALITY AGREEMENT

This Confidentiality Agreement (the "Agreement") is entered into by and between:

".....", a company duly incorporated and existing under the laws of the, registered under UIC, having its seat and registered office at, duly represented by in his/her capacity as, hereinafter referred to as a "Party",

and

Evrotrust Technologies AD, a company duly incorporated and existing under the laws of the Republic of Bulgaria, registered under UIC 203397356, having its seat and registered office at Sofia, 251G Okolovrasten Pat Str., MM Business Center, 5th floor, duly represented by Konstantin Stanislavov Bezuhanov, in his capacity as Chief Executive Officer, hereinafter also referred to as a "Party",

hereinafter jointly referred to as the "Parties".

1. PURPOSE

The Parties intend to explore the possibility of entering into a [partnership] agreement concerning (the "Project"). In this regard, each of the Parties may disclose certain confidential and protected information to the other. This Agreement sets forth the terms and conditions governing the protection of such information.

2. CONFIDENTIAL INFORMATION

2.1. In this Agreement, the term "**Confidential Information**" means any and all information related to the Project disclosed by either Party or their respective representatives to the other Party or its representatives, including, but not limited to, product specifications, plans, drawings, models, designs, technical studies or data, commercial and financial information, regardless of its form (whether oral, written, magnetic, electronic, graphic, digitised or any other form).

For the avoidance of doubt, Confidential Information includes, but is not limited to: business, operational, administrative, legal, financial, accounting and marketing information, analyses, prognoses or projects, technical data, software,

demonstration programs, computer programs, algorithms, computer systems, technical skills, documentation, design, procedures, formulas, innovations, improvements, ideas, records, files, memoranda, reports, drawings, plans, price lists, client lists or other accounting information, trade secrets, know-how and/or objects of intellectual property. In addition, the existence and conditions of this Agreement, as well as the facts and the content of all negotiations or correspondence with regard to it, or contracts that are to be concluded between the Parties, shall be considered Confidential Information.

2.2. Confidential Information shall not include information:

- 1) that was within the public domain prior to disclosure, or comes into the public domain through no wrongful act, fault, or negligence on the part of the receiving Party;
- 2) which is independently developed by the receiving Party without reference to or reliance upon Confidential Information;
- 3) which is or becomes lawfully available to a Party on a non-confidential basis from a third party (and, for the avoidance of doubt, the receiving Party shall, in advance of receiving such information, inquire whether there is a duty of confidentiality); or
- 4) which is disclosed by a Party with the other Party's prior written approval.

3. PROTECTION OF CONFIDENTIAL INFORMATION

3.1. Each Party agrees:

- 1) to use the Confidential Information solely for the purposes of the Project;
- 2) to restrict access to the Confidential Information only to its directors and employees who need to know it for the purposes of the Project and who are bound by similar confidentiality obligations;
- 3) to ensure that such persons comply with the terms of this Agreement.

3.2. Disclosure of Confidential Information to affiliates, contractors, or third parties shall be permitted only subject to a written confidentiality agreement ensuring compliance with the terms of this Agreement.

3.3. Any disclosure required by law or regulation shall be limited to the minimum necessary and, where possible, made following prior consultation with the other Party.

4. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

Upon written request by the disclosing Party, as well as following the termination of

the relationship between the Parties, the receiving Party shall return or destroy all Confidential Information in its possession. The receiving Party may retain only its own internal materials containing such information ("Secondary Information"), provided that they remain confidential.

5. LIABILITY AND INDEMNIFICATION

5.1. In case of a breach of this Agreement, the breaching Party shall indemnify the aggrieved Party solely for its direct damages arising from such breach.

5.2. The aggrieved Party shall be entitled to seek judicial protection by way of interim or permanent injunctive relief where necessary to prevent or cease any breach of this Agreement.

6. NO WARRANTIES

The Confidential Information is provided "as is." Neither Party makes any warranty regarding its accuracy or completeness, unless otherwise agreed in writing.

7. INTELLECTUAL PROPERTY

All rights, including intellectual property rights, in and to the Confidential Information shall remain the exclusive property of the disclosing Party. Nothing in this Agreement shall be construed as granting or transferring any rights or licenses in respect of the Confidential Information.

8. NO OBLIGATION

Nothing in this Agreement shall obligate either Party to enter into any subsequent agreement or transaction. Neither Party shall be liable for any costs incurred by the other Party in connection with the Project or this Agreement.

9. NON-COMPETE

9.1. The receiving Party agrees that, during the term of this Agreement and for a period of 5 years after the termination of all relationships between the Parties, it shall not, directly or indirectly through its Affiliates, without the prior written consent of Evrotrust Technologies AD, engage in any activity that competes with the business of Evrotrust Technologies AD.

9.2. For the purposes of this clause, "competing activity" shall mean any activity regulated under Regulation (EU) No. 910/2014 or any subsequent replacing legislation, including but not limited to the provision of trust services such as the issuance, validation, or verification of electronic signatures, electronic seals,

electronic time stamps, registered electronic delivery or related certificates, as well as the provision of electronic identification services and related activities, including but not limited to technological or software tools for such identification, whether or not regulated.

9.3. "Affiliate" has the meaning ascribed to it under § 1 of the Supplementary Provisions of the Bulgarian Commercial Act.

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10. ENTRY INTO FORCE AND TERM

10.1. This Agreement shall enter into force on the date of the last validly binding signature of the Parties and shall remain in effect for a period of five (5) years or until the conclusion of a subsequent agreement between the Parties, whichever occurs earlier.

10.2. Notwithstanding the termination of this Agreement, the obligations relating to confidentiality and the protection of personal data shall remain in force for the term under Art. 10.1.

11. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of the Republic of Bulgaria. All disputes arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the competent courts of Sofia, Bulgaria.

This Agreement is executed in two (2) identical counterparts – one for each Party. When signed in electronic form, each Party shall retain an electronic file constituting an original. In the case of execution by means of an electronic signature which is not a qualified electronic signature, the Parties agree that such signature shall be legally binding for the purposes of concluding this Agreement.